

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 17, 2026 AT 8:30 A.M.**

17. S-CV-0055798 MOINVASIRI, DAVID v. TESLA MOTORS

NOTE: If oral argument is requested in this case, it shall be heard on JULY 17, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant's Motion to Reclassify the Action as a Limited Civil Case

The motion is denied. Defendant has not made a sufficient showing that the UCL and CRLA claims are improperly pleaded as unlimited civil claims.

Defendant's Demurrer to the First Amended Complaint (FAC)

Ruling on Requests for Judicial Notice

Defendant's request for judicial notice as to Exhibit L is denied. Judicial notice may not be used as a mechanism for turning a demurrer into an evidentiary hearing. (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 113-114.)

Plaintiff's request for judicial notice is granted under Evidence Code section 452.

Ruling on Demurrer

The demurrer is overruled. The FAC, when read as a whole, alleges sufficient facts to support each of the five causes of action.

Defendant shall file and serve its answer or general denial by July 31, 2026.

Defendant's Motion to Strike the First Amended Complaint (FAC)

The motion to strike is denied. The challenged allegations, when read as a whole within the FAC, are properly pleaded and are not irrelevant, false, improper, or not drawn in conformity with the law. Defendant shall file and serve its answer or general denial by July 31, 2026.

Case Management Conference

The case management conference is continued to **Friday, September 4, 2026 at 9:00 a.m. in Department 1.**